Master Service Agreement (MSA)

Between FCI Cyber and

Effective Date (mm-dd-yyyy):

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MASTER SERVICE AGREEMENT (MSA)

This Master Service Agreement (this “MSA,”) dated on (the "EFFECTIVE DATE”) is entered into by and between FCI Cyber Inc. a New Jersey company, having its principal place of business at 140 E. Ridgewood Ave, Suite 415, Paramus, NJ 07652 (“FCI”) and , having its principal place of business at [Organization.Address.Value] (the “CLIENT”) who agrees to be bound by this MSA. This MSA, if applicable, supersedes any previous MSA that may have been signed between the PARTIES before the EFFECTIVE DATE.

With due regard to the shared covenants and commitments put forth by FCI and CLIENT (referred to individually herein as a "PARTY" and collectively as the "PARTIES"), the PARTIES hereby mutually consent to the following:

1. CONFIDENTIALITY

1.1 "CONFIDENTIAL INFORMATION” shall mean any non-public, proprietary information (whether or not patentable or copyrightable, and whether or not currently patented or copyrighted) which is owned or controlled by a DISCLOSING PARTY (as defined in Section 1.3), whether in tangible or intangible form and including information that is derived through observation or examination of the DISCLOSING PARTY’s facilities or operations, including without limitation, the fact that any PARTY has entered into this MSA or provided or obtained services from the other, trade secrets, know-how, designs, prototypes, data, processes, methods, reports, compilations, research notes, technology, pricing, the identity of and information relating to services, equipment, procedures, customers, suppliers or employees, sales, marketing, and financial information and any other non-public business information.

1.2 CONFIDENTIAL INFORMATION shall not include information which (a) is or becomes generally available to the public other than as a result of a breach of this MSA by the RECEIVING PARTY (as defined in Section 1.3); (b) was rightfully in the RECEIVING PARTY’s possession prior to receipt from the DISCLOSING PARTY as evidenced by the RECEIVING PARTY’s contemporaneously written records; (c) is received by the RECEIVING PARTY from a third party on a non-confidential basis, unless the RECEIVING PARTY knows that the third party is bound by an obligation of confidentiality (contractual, legal, fiduciary or otherwise) to the DISCLOSING PARTY or any other party with respect to such information; or (d) is or was independently developed by the RECEIVING PARTY without reference to or reliance upon the CONFIDENTIAL INFORMATION received from the DISCLOSING PARTY as evidenced by the RECEIVING PARTY’s contemporaneously written records.

1.3 During the term of this MSA, the PARTIES may exchange CONFIDENTIAL INFORMATION in furtherance of the performance of their respective duties under this MSA. Any PARTY disclosing CONFIDENTIAL INFORMATION shall be referred to as the “DISCLOSING PARTY” and a PARTY receiving CONFIDENTIAL INFORMATION shall be referred to as the “RECEIVING PARTY".

1.4 The RECEIVING PARTY shall protect and hold in confidence all CONFIDENTIAL INFORMATION of the DISCLOSING PARTY, using the same degree of care it uses to protect its own valuable information, providing it shall use no less than reasonable care. The RECEIVING PARTY shall limit its disclosure of the CONFIDENTIAL INFORMATION to its directors, officers, employees, affiliates and/or subcontractors (collectively referred to herein as “REPRESENTATIVES”) who have a “need to know” such CONFIDENTIAL INFORMATION to carry out the purpose of this MSA, and who are subject to legally enforceable obligations in connection with such CONFIDENTIAL INFORMATION, which are no less restrictive than those imposed on the RECEIVING PARTY under this MSA.

1.5 The RECEIVING PARTY also shall not attempt to copy the design, samples or prototypes, or any components thereof, of any CONFIDENTIAL INFORMATION for any purpose. The RECEIVING PARTY shall be responsible for any breach of this MSA by it or its REPRESENTATIVES.

1.6 Notwithstanding anything to the contrary contained in this MSA, CONFIDENTIAL INFORMATION may be disclosed by a RECEIVING PARTY as required by applicable law or legal process, provided the RECEIVING PARTY notifies the DISCLOSING PARTY prior to such disclosure, except where such notice is impracticable or prohibited by law, so as to afford the DISCLOSING PARTY a reasonable opportunity to object or seek an appropriate protecting order with respect to such disclosure. Notwithstanding the foregoing, CONFIDENTIAL INFORMATION that is disclosed pursuant to applicable law or legal process shall remain CONFIDENTIAL INFORMATION for all other purposes of this MSA.

1.7 At the written request of the DISCLOSING PARTY, the RECEIVING PARTY shall return or destroy, at the Disclosing Party’s option, all CONFIDENTIAL INFORMATION, provided, however that the RECEIVING PARTY may retain one copy of any such CONFIDENTIAL INFORMATION as necessary in the ordinary course of business.

2. SERVICES & STATEMENT OF WORK

2.1 Services: FCI shall furnish CLIENT with selected managed cybersecurity services (the "SERVICES").

2.2 Statement of Work: The scope of the SERVICES shall be delineated through a Statement of Work ("SOW"), which both PARTIES shall sign. Should changes to selected SERVICES under an SOW be required, the PARTIES shall mutually agree to such changes in writing. Change requests should be reasonable and made with consideration of established timelines for the SOW in question.

3. SOAR PLATFORM, SOC & DATA CENTERS

3.1 SOAR Platform: To deliver the SERVICES, FCI built a proprietary Security, Orchestration, Automation, and Response ("SOAR") platform.

3.2 Best-of-Breed Cybersecurity Software: To render the SERVICES, FCI selects, integrates, configures, augments, and manages commercially available best-of-breed cybersecurity software. Such best-of-breed software were thoroughly tested by the software publishers, the clients of such software publishers, and FCI. CLIENT agrees that, from time to time, FCI may change one or more of such best-of-breed software without advising CLIENT.

3.3 Operating System Changes: Occasional significant updates by operating system vendors can impact SERVICES functionality, causing interrupted service during these instances. There might be a temporary period following such changes until either the software manufacturer releases a compatible version for the updated OS, or FCI transitions to an adapted solution.

3.4 Software Integrity: FCI verifies the integrity of installed software by (i) regularly checking for all viruses, worms, Trojan horses, and other malicious software and eradicating them, (ii) keeping up-to-date virus signatures and other relevant signatures such as those for intrusion detection systems, and (iii) regularly comparing all file and directory cryptographic checksums with a trusted baseline.

3.5 Access Authorization: FCI has implemented appropriate levels of control of user access. User access can occur through network connections from both inside and outside FCI’s organization. FCI practices take into account levels of restricted access required for specific assets and levels of data classification.

3.6 Multi-Factor Authentication: FCI requires the use of at least two-factor authentication for administrative control of all devices, systems, and software relating to the SERVICES. FCI protects critical assets when authenticating and authorizing users and administrators working remotely. This is implemented by using strong encryption and virtual private networks, access controls at the level of networks, systems, files, and applications, and by restricting access to authorized times and tasks as required. These practices apply to wireless network access as well.

3.7 Monitoring & Auditing: To monitor and audit its own systems and networks, FCI uses appropriate monitoring, auditing, and inspection tools and assigns responsibility for reporting, evaluating, and responding to system and network events and conditions. This includes (i) regularly using system and network monitoring tools and examining the results they produce and (ii) regularly using log filtering and analysis tools and examining the results they produce.

3.8 CLIENT Nonpublic Information: By design, the FCI SOAR platform does not permit access to or storage of CLIENT's nonpublic information ('NPI'). In some cases, CLIENT’s contact information, device information, support tickets, logs and configuration settings may be hosted at a third-party vendor cloud location in the United States. FCI confirms that such vendors were selected through the FCI documented vendor selection process and they met the cybersecurity standards expected from best-of-breed vendors.

3.9 Locations: FCI Data Centers, Hosting Facilities and Security Operation Centers ("SOC") are located in the United States. FCI asserts that it is not performing the SERVICES or any portion thereof, nor send or make available any CLIENT-related information, outside the United States.

3.10 Physical Security: FCI controls, monitors, and reviews physical access to information assets, services and resources according to their importance. This includes (i) identification and authentication of FCI employees who have physical access to assets providing the SERVICES, (ii) the process for requesting and approving physical access, and (iii) CLIENT asset protection from unauthorized physical access. FCI asserts the presence of physical security systems such as uninterruptible power supplies, backup generators, redundant climate control systems, and a data-center-grade fire control system for prevention and protection.

4. EMPLOYEES

4.1 Background Checks: All individuals working with FCI to render the SERVICES are employees or subcontractors of FCI for whom FCI does background checks leveraging a system that includes a comprehensive set of information including: Arrest records, birth records, court records, criminal records, criminal wants and arrest warrants, death records, jail and inmate records, police records, and sex offenders. Employees and subcontractors are under contract and signed a non-disclosure agreement with FCI.

4.2 Non-Hire: The PARTIES shall not, during the term of the MSA, ensuing relationship and for one year after termination, attempt to solicit, solicit for employment or employ any person who is or has been employed by either PARTY as a full-time or contract employee without prior written consent from the other PARTY. Should a PARTY breach this Section, that PARTY agrees to pay the aggrieved PARTY within 10 days of such hire, a sum equal to 30% of the hired person's annualized ongoing compensation.

5. FEES & PAYMENTS

5.1 SOW Invoices: Based on the nature of the selected SERVICES type, the SOW invoices are set to encompass fees as per the table below. All payments pursuant to SOWs are non-refundable.

SERVICES Types	**First Invoice** Payable Upon Reception	**Second Invoice**
Recurring SERVICES	• Implementation Fees, if any • First Month Recurring Fees	• Upon the successful completion of the implementation project, the initial month's fees already paid shall be allocated to the ongoing month • Subsequently, the commencement of recurring monthly billing is scheduled for the following month, coinciding with the dispatch of the second invoice.
One-Time Project SERVICES	• 50% of Project Fees	• 50% of Project Fees payable at Project completion

5.2 Billing on Actuals: As specified within their respective Statement of Work (SOW), unless otherwise stipulated, the Recurring SERVICES shall be invoiced based on actuals. On the 20th day of each month, the total count of items associated with a given Recurring SERVICE shall determine the amount billed for such Recurring SERVICE in the subsequent monthly invoice.

5.3 Payments: CLIENT shall pay for the SERVICES with a credit card or an Automated Bank Transfer (ACH) through the FCI Payment Portal. CLIENT access to such Payment Portal shall be provided by FCI to CLIENT within 5 business days upon signature of the MSA. Except for the first invoice, which is payable upon receipt and before project starts, payment of all invoices is due strictly within thirty (30) days of the invoice date, other than amounts being disputed in good faith which shall require written notice on or before the due date of the invoice. Such notice shall specify the nature of the dispute. CLIENT agrees to pay all undisputed amounts as provided above.

5.4 Interests: FCI reserves the right to invoice CLIENT the lesser of twelve percent (12%) annual interest or the highest interest rate allowable under applicable laws for any outstanding, undisputed invoice not paid upon the terms defined in the MSA.

5.5 Annual Price Increase: On January 1st of every calendar year, CLIENT agrees that the price of the SERVICES shall automatically increase by 2.5%.

6. PROJECT MANAGEMENT & SUPPORT

6.1 Steering Committee: To facilitate the review of the MSA and its SOWs, and to further the anticipated cooperation hereunder, the PARTIES may form a steering committee (the "STEERING COMMITTEE") which will ensure governance, make decisions, and resolve escalated issues.

The STEERING COMMITTEE members may include, but are not limited to:

- CLIENT's Senior Executive, CISO or Security Officer, and Project Manager
- FCI's Senior Executive, Account Manager, and Project Manager

6.2 Project Managers: CLIENT agrees that the CLIENT’s Project Manager role shall be performed by a CLIENT employee and shall not be assigned to an external firm, unless approved by FCI. The STEERING COMMITTEE reporting and calls shall be jointly planned and managed by the PARTIES' Project Managers.

6.3 Cyber Support Portal & Ticket: CLIENT shall use FCI Cyber Support Portal for all Support Requests. The procedure to open a Support Ticket is defined, and may change from time to time, at the following Web page: https://www.fcicyber.com/ticket-creation-instructions/

A new Support Ticket shall be created to track a Support Request. The Support Ticket remains open until the request is completed, or the incident is resolved. FCI shall provide regular status updates throughout the Support Ticket life-cycle. CLIENT may check a Support Ticket status by accessing the Support Portal or calling FCI. In the event that CLIENT contacts FCI by phone or email without opening a Support Ticket in the Support Portal, FCI shall request CLIENT to open a Support Ticket, which CLIENT agrees to perform as soon as possible.

6.4 Email Support: At any time, CLIENT may contact FCI support by sending an email to support@fcicyber.com In the event that a member of the FCI Management or Sales teams receives a message regarding support, the email shall be forwarded to support@fcicyber.com and the original sender shall be copied. If the issue cannot be resolved via email, the issue shall be escalated to Phone Support.

6.5 Phone Support: FCI provides Phone Support for the SERVICES. FCI employees are available to answer technical questions and provide assistance. If the issue cannot be resolved via phone, the issue shall be escalated to Attended Remote Access Support.

6.6 Attended Remote Access Support: Services performed using applications that allow FCI personnel remote connectivity to CLIENT's environment. Remote connectivity shall only be performed in an effort to troubleshoot and resolve cybersecurity related issues. To perform Attended Remote Access Assistance FCI shall not request credentials (usernames and passwords) from CLIENT. Remote Access Support shall be done via a screen sharing session in which FCI technician works while CLIENT's end-user views exactly what the FCI technician is doing. During a screen sharing session, CLIENT's end-user may be required to enter its username and password to access certain applications. If the issue cannot be resolved via Remote Access Support, the issue shall be escalated to On-Site Support.

6.7 On-Site Support: FCI employees or contractors are available on a time-and-material basis to visit CLIENT site for issues that cannot be resolved from Phone or Remote Access Support. FCI onsite visits, project implementation and maintenance must be scheduled at least two (2) business days in advance. FCI shall charge for travel and transportation expenses as incured. These expenses must be pre-approved by CLIENT in the form of an email and may include travel time, food, lodging, airfare, car rental, gas, parking and/or highway tolls.

6.8 Additional Support: For any Cybersecurity support request for services other than the SERVICES selected by CLIENT, FCI support shall be provided on a best effort and invoiced time-and-material basis, according to the then-current hourly rate.

6.9 Support Contact Information: Phone (973) 227-8878, Toll-Free (888) 434-6443, Fax (973) 227-8795, Email support@fcicyber.com

6.10 Business Hours: FCI business hours are between 8:00 AM and 5:30 PM Eastern Time, Monday through Friday, excluding nationally observed holidays (the “BUSINESS HOURS”). Should CLIENT require work to be performed at a time outside BUSINESS HOURS or during a holiday, the service shall be provided at one and a half (1.5) times the then-current hourly rates.

6.11 Client Responsibilities Related to Support Issue: Before contacting FCI with a suspected issue, CLIENT undertakes to (i) analyze the suspected issue to determine if it is the result of CLIENT’s misuse or misunderstanding of the SERVICES, the performance of a third party or cause beyond FCI’s reasonable control, (ii) ascertain, if applicable, that the issue can be replicated and (iii) collect and provide to FCI all relevant information relating to the issue. If a reported issue is directly caused by or related to something that is not part of the SERVICES, then FCI is not obliged to perform support services in respect of such issue.

6.12 Defamatory & Offensive Language: When emailing or talking with FCI employees, CLIENT agrees not to use language considered to be defamatory, offensive, or that could be perceived as threat, abuse or harassment. In the event that CLIENT or any of its employees, affiliates, or contractors, act in such a way with FCI employees, such employees are advised to (i) mention that in such situation they have to escalate the issue to the STEERING COMMITTEE, (ii) hang up the call or leave the location, and (iii) advise immediately the FCI Project Manager who will promptly escalate the issue to the STEERING COMMITTEE. The STEERING COMMITTEE shall then discuss the case on a conference call.

7. BILLABLE SUPPORT SERVICES

7.1 Billable Support Services: Support services not covered under the SERVICES are defined in this MSA and its SOWs (the "BILLABLE SUPPORT SERVICES").

7.2 BILLABLE SUPPORT SERVICES Approval: As part of the MSA signing process, CLIENT is required to specify whether FCI needs to seek CLIENT's approval before commencing work on BILLABLE SUPPORT SERVICES requested by CLIENT end-users.

- CLIENT approval is not required: FCI will proceed to address BILLABLE SUPPORT SERVICES requests from CLIENT end-users without necessitating CLIENT's explicit approval for each individual request.
- CLIENT approval is required: FCI will refrain from furnishing BILLABLE SUPPORT SERVICES to CLIENT end-users without the prior written consent of CLIENT. In such cases, when a request for BILLABLE SUPPORT SERVICES is submitted, FCI shall direct the end-user to obtain CLIENT's endorsement for the corresponding Support Ticket number. CLIENT can convey their approval by sending an email confirmation to support@fcicyber.com for the specific Support Ticket number. CLIENT should note that this approach may extend support response times, due to the additional approval step.

7.3 Minimum BILLABLE SUPPORT SERVICES Time: To cover administration, infrastructure, project management, and technician costs, there is a minimum of one (1) billable hour with each on-site visit and a minimum of thirty (30) billable minutes associated with BILLABLE SUPPORT SERVICES.

7.4 BILLABLE SUPPORT SERVICES Hourly Rate

Level	Remote	Onsite
Level 1: Technicians	$136	$152
Level 2: Project and Department Managers	$164	$182
Level 3: Senior Management & Directors	$219	$242
Level 4: Compliance Guidance & Cybersecurity Incident Response	$296	$343

7.5 Special Rate: Work performed outside normal working hours or during a holiday shall be invoiced at one and a half (1.5) times the normal FCI hourly rates. Unscheduled visits outside scheduling window shall be invoiced at two (2) times the normal FCI hourly rates.

7.6 Cooperation with Regulators, Authorities, and Cyber Insurance Companies: In the event of a cybersecurity audit, examination, incident or breach, FCI and CLIENT are committed to working together in good faith to resolve any request by Regulators, Authorities, and Cyber Insurance Companies. CLIENT shall be liable for FCI's reasonable additional costs that FCI incurs in connection with such effort and considered as BILLABLE SUPPORT SERVICES. Such BILLABLE SUPPORT SERVICES shall be estimated by FCI and pre-approved by CLIENT in the form of an email.

7.7 Billable Support Services Payment: FCI does not engage in automatic payment processing for BILLABLE SUPPORT SERVICES. Instead, FCI shall upload the support invoice onto the Payment Portal. It is the responsibility of the CLIENT to thoroughly review the invoice and initiate manual payment accordingly.

8. ISSUES & SERVICE LEVEL AGREEMENT (SLA)

8.1 Issue Classification: When an issue is reported, FCI shall analyze the information provided by CLIENT and classify such issue by assigning it an Issue Severity, an Issue Resolution Level (the "ISSUE CLASSIFICATION"), as well as a Generic or Specific Service Level Agreement ("SLA"). FCI shall share with CLIENT the initial ISSUE CLASSIFICATION and any updated ISSUE CLASSIFICATIONS in the form of email.

8.2 Issue Resolution: FCI shall work on an issue until FCI can confirm to CLIENT via email that the Issue Resolution Level is at level 3 (Complete Resolution). CLIENT shall confirm acceptance of an Issue Resolution via email. In the event that CLIENT does not confirm acceptance in the next three (3) business days following reception of the confirmation from FCI, such issue shall be considered automatically closed.

8.3 Issue Severities

Severity	Definition
1 Critical	System functionality is completely unavailable or inaccessible. The situation requires immediate attention. Examples: • All services unavailable on a single platform – total loss of service • Services unavailable to a multitude of platforms • Suspected security breach
2 High	System functionality is severely limited, resulting in the prevention of key operations. With no available workaround, the situation requires urgent attention. Examples: • Single service unavailable • Loss of platform • Backup failure • Significant degradation of service / performance
3 Medium	The system is impaired, a single function is impacted but key business processes are not interrupted. Examples: • Minor degradation of system performance • Single user fault
4 Minor	The problem causes minimal operational or business impact. Examples: • Minor issue with no impact on service • Technical/Product query

8.4 Issue Resolution Levels

Level	Definition
1 Response	Initialization of the support process through engagement with the client: Email notification, Information gathering, Analysis, Issue replication, etc.
2 Partial Resolution	Provision of a solution to an incident or problem either by employing a temporary fix, an answer, or a technique that protects client until a Complete Resolution is delivered.
3 Complete Resolution	Return to the normal or expected status.

8.5 Generic SLA

Severity	1 Response	2 Partial Resolution	3 Complete Resolution
1 Critical	1 BUSINESS HOUR	2 BUSINESS HOURS	1 Business Day
2 High	2 BUSINESS HOURS	4 BUSINESS HOURS	2 Business Days
3 Medium	1 Business Day	2 Business Days	4 Business Days
4 Minor	4 Business Days	8 Business Days	16 Business Days

8.6 Specific SLA

Email/Phone confirmation of Support Request	Configuration changes to reflect CLIENT Security Policy Changes	Cyber Tools & SOC Uptime	Backup Restore
1 BUSINESS HOUR	10 Business Days	99.9% Maximum Downtime: • 8.76 hours / year • 43.8 minutes / month • 10.1 minutes / week	4 BUSINESS HOURS

9. CYBER INCIDENT MANAGEMENT & BILLING

9.1 Cyber Incident Detection & Notification: This process includes alert handling, describing what actions and countermeasures are taken when alerts are generated. Alerts are handled initially by automation, and when human action is required, a notification process delivers the information to an analyst.

9.2 Cyber Incident Response: This process includes (i) handoff from intrusion detection, (ii) triage of all detected intrusions and establishment of priorities, and (iii) how the service responds to a detected intrusion including:

- Internal FCI supervisor/manager notification
- Notifying CLIENT
- Containing the damage
- Returning systems to normal operation
- Exercising options for automated response
- Performing forensic analysis
- Preserving evidence
- Recommending improvement actions to ensure the same intrusion is not successful again

9.3 Cyber Incident Response Billing: Cyber Incident support directly associated with the SERVICES provided by FCI is encompassed within the SERVICES price. However, Cyber Incident support unrelated to FCI services is not covered in the SERVICES price. Such support requires prior approval from the CLIENT and will be invoiced at the then-current hourly rate.

10. CONTINGENCY PLANNING & DISASTER RECOVERY

FCI implemented business continuity and disaster recovery plans ("BCDRP") for critical assets and asserts that they are periodically tested and found effective. FCI has deployed operational redundancy (via a dual, high availability environment) in the event of a primary SOC failure and a failover site, physically and geographically separated from FCI's primary site, exists in the event of a natural disaster (earthquake, hurricane) or other circumstances that affect business continuity such as interruptions in local/regional utility service (communications, gas, electric, sewer, water). FCI can support periodic joint testing of the PARTIES' BCDRPs. Such joint tests include impact scenarios that could potentially cause unacceptable interruption of the SERVICES. Such testing services are BILLABLE SUPPORT SERVICES and shall be charged at the then-current hourly rate.

11. CYBERSECURITY REGULATORY COMPLIANCE

11.1 Cybersecurity Policies, Procedures, & Regulations: FCI has a comprehensive set of documented, current policies that are periodically reviewed, updated, and enforced. Such security policies specifically address the purpose and scope of the SERVICES.

11.2 Cybersecurity Regulations: FCI asserts that its security policies and procedures are compliant with the United States government, other governing authorities' regulations, and those that CLIENT has or may have provided to FCI and do not conflict. Where compliance and conflict issues exist, the PARTIES will jointly work to fix such issues. FCI commits to a timely implementation and demonstration of compliance procedures when such legal and regulatory requirements are created or updated.

12. CLAIMS, PROCESS & REMEDIES

12.1 Sole and Exclusive Remedy: CLIENT agrees that its sole and exclusive remedy for any SLA that is not met is as set forth below.

12.2 Claim Submission: In order to receive a credit, CLIENT must submit a claim in the form of an email for the credit to claim@fcicyber.com within seven (7) business days of the date on which the SLA was not met. The claim must contain the following information:

- “SLA Credit Request” in the email subject line
- CLIENT’s name, CLIENT’s contact name, and CLIENT’s contact phone number
- Description of the SLA not met and the date of such failure

12.3 Claim Review and Determination: Within seven (7) business days, FCI will make all credit determinations in its reasonable discretion and will notify the designated contact(s) in the form of an email of its decision. If any request is rejected, the notification from FCI will contain the reasons for such rejection.

12.4 Service Level Credits: For all accepted claim requests, FCI shall provide a service level credit to CLIENT equal to the pro-rated charges for one (1) full day of the affected services (i.e., 1/30 of the monthly fee, assuming a thirty (30) day month) for each day during which one or more of the SLAs was not met. Any service level credits accrued hereunder shall be credited against the fees owed by CLIENT to FCI.

12.5 Service Level Credit Exceptions: Service level credits shall not be available to CLIENT if failure to meet the SLAs set forth above results in any way from (i) CLIENT's failure to meet its obligations set forth in this MSA, (ii) CLIENT's material impediment of FCI's efforts to meet the SLAs, (iii) the negligent acts or omissions of CLIENT, its employees, contractors, agents or end users, (iv) the failure or malfunction of equipment, applications or systems not owned or controlled by FCI, (v) circumstances or causes beyond the control of FCI or (vi) scheduled services maintenance, alteration, or implementation.

12.6 Maximum Credits: In the event that CLIENT is entitled to multiple service level credits arising on the same day, such service level credits shall not be cumulative, and CLIENT shall be entitled to receive only a service level credit equal to no more than the pro-rated service charges for that day. Under no circumstances shall FCI be required to issue service level credits to CLIENT in any one (1) calendar month totaling more than fifteen (15) days of service fees.

13. TRADEMARK, COPYRIGHT & INTELLECTUAL PROPERTY

13.1 No Copyright Infringement Intended: Each PARTY agrees that they shall not knowingly infringe trademark, copyright, licenses or other intellectual property rights of the other PARTY.

13.2 Restrictions: CLIENT shall not directly or indirectly (i) sell, lease, redistribute or transfer any of the SERVICES, (ii) decompile, disassemble, reverse engineer, or otherwise attempt to derive, obtain or modify the source code of the software provided with the SERVICES, (iii) reproduce, modify, translate or create derivative works of all or any part of the software provided with the SERVICES, (iv) rent, lease or loan the software provided with the SERVICES in any form to any third party or otherwise allow a third party to use the software provided with the SERVICES, (v) sublicense any of the rights granted to CLIENT in this MSA, or (vi) remove, alter or obscure any proprietary notice, labels, or marks of the software provided with the SERVICES.

13.3 Use of Company Names & Logos: CLIENT hereby grants to FCI the right to use CLIENT's company name and logo in marketing, sales, and public relations materials and other communications solely to identify CLIENT as an FCI client. FCI hereby grants to CLIENT the right to use FCI's logo solely to identify FCI as a provider of cybersecurity services to CLIENT.

14. WARRANTIES AND LIMITATION OF LIABILITY

14.1 Warranties: FCI makes no representation or warranty whether express, implied or statutory, regarding the SERVICES, hardware and software provided by FCI, including but not limited to, any implied warranties of merchantability and non-infringement of any third-party rights.

14.2 Limitation of Liability: The limitation of liability of FCI for any acts or omissions shall be limited to the value of the SERVICES rendered. The sole remedy for hardware and/or software defects shall lie with the manufacturer of such hardware and/or software.

15. INSURANCE

FCI shall purchase and maintain insurance protection throughout the term of this MSA. This shall include, but not necessarily be limited to, (i) a broad form commercial general liability insurance of $1,000,000, (ii) a workers compensation and employers liability insurance of $500,000, (iii) an errors and omissions insurance of $1,000,000, and (iv) a network security insurance of $1,000,000.

16. TERM AND TERMINATION

16.1 Term: This MSA is effective upon the EFFECTIVE DATE and shall remain in force for a period of one (1) year (the "INITIAL TERM"). Following the conclusion of the INITIAL TERM, this MSA will automatically renew for successive one-year terms, starting from the day immediately following the conclusion of the INITIAL TERM.

16.2. Termination: After the INITIAL TERM, either PARTY may terminate this MSA at any time by giving the other party a sixty (60)-day written notice of termination. In the event that this MSA is terminated, (i) CLIENT shall pay FCI for all due invoices, work performed, and all expenses incurred prior to the effective date of termination, and (ii) the PARTIES shall jointly work to define a transition plan that generally refers to setting a date when FCI will remove its tools from CLIENT endpoints and stop providing the SERVICES. If additional efforts are required by CLIENT, FCI shall provide CLIENT with an estimated cost to perform such efforts. In the event that CLIENT wants to terminate this MSA at the time of the notice and without waiting for 60 days, CLIENTS shall pay FCI the equivalent of 2 months of SERVICES fees. The monthly fees for the SERVICES billed following the receipt of the termination notice shall equate to the highest monthly amount charged for the SERVICES within the 6 months prior to the termination notice.

17. GOVERNING LAW, ARBITRATION & JURISDICTION

17.1 Governing Law: This MSA shall be governed by, construed, interpreted and enforced in accordance with the laws of the State of New York, without giving effect to the principles of conflict of laws thereof.

17.2 Arbitration: The PARTIES agree that any dispute between the PARTIES arising out of this MSA may be required to be submitted by the aggrieved PARTY for binding arbitration under the auspices of the American Arbitration Association. Any demand for arbitration will be filed with the American Arbitration Association's office in New York, New York, and the arbitration must be held in New York, New York. The PARTIES agree the arbitration shall be conducted by a panel of three persons familiar with cybersecurity, computer technology and software application matters, at least two of such persons being attorneys. One arbitrator shall be designated by each PARTY and the third neutral arbitrator shall be chosen jointly by the respective PARTY arbitrators. Any award rendered by the arbitrator(s) may be entered as a judgment or order and confirmed or enforced by either PARTY in any state or federal court having competent jurisdiction thereof. The arbitrators shall have the authority to award costs and attorneys' fees as they deem proper.

17.3 Waiving of Right to a Trial: The PARTIES knowingly and willingly waive any right they have under applicable law to a trial by jury in any dispute arising out of or in any way related to this MSA or the issues raised by that dispute.

17.4 In Good Faith: The PARTIES covenant and agree to cooperate in good faith in all actions relating to this MSA, to communicate openly and honestly, and generally to attempt to avoid disputes in connection with this MSA. If a dispute should arise in connection with this MSA, the PARTIES agree to act in good faith to resolve such dispute in a fair and equitable manner and without the need for costly and time-consuming litigation.

18. NOTICES

All notices or other communications referenced under this MSA shall be made in writing by the PARTIES.

19. ENTIRE AGREEMENT

This MSA and its SOWs contain the entire agreement between the PARTIES relating to the SERVICES. It is the express intention of the PARTIES that any and all prior or contemporaneous agreements, promises, negotiations or representations, either oral or written, relating to the subject matter and period governed by this MSA which are not expressly set forth herein shall be of no further force, effect or legal consequence after the EFFECTIVE DATE.

20. REQUIRED CLIENT INFORMATION

CISO or Security Officer	
Name	
Email	
Phone	

Billing Contact	
Name	
Email	
Phone	

1st Emergency Contact	
Name	
Email	
Mobile Phone	

2nd Emergency Contact	
Name	
Email	
Mobile Phone	

CLIENT Email Lists

Two email lists shall be created by CLIENT and provided to FCI at the time of signature of this MSA. CLIENT is responsible to manage these email lists and their recipients. As an option, CLIENT may create only one email list that will receive both alert and report email messages.

- fci_alerts@client_domain.com will receive FCI alerts and notifications.
- fci_reports@client_domain.com will receive FCI reports.

CLIENT Email Lists	
Alert Email List	
Report Email List	

BILLABLE SUPPORT SERVICES Approval	
CLIENT is requested to specify whether their approval is required before FCI provides BILLABLE SUPPORT SERVICES to CLIENT end-users.	◯ CLIENT approval is required ◯ CLIENT approval is not required

21. SIGNATURES

FCI Cyber Inc.

[Person.Title]

Brian Edelman
CEO